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Appendix: Measuring Jurisprudence

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1. Codebook

1.1 Code: Formal

1.1.1 DESCRIPTION:

A legal decision made according to a rule, often viewing the law as a closed and mechanical system. It screens the decision-maker off from the political, social, and economic choices involved in the decision.

1.1.2 CORE EXAMPLES:

Accepting this point, too, for argument's sake, the question becomes: What did "discriminate" mean in 1964? As it turns out, it meant then roughly what it means today: "To make a difference in treatment or favor (of one as compared with others)." Webster's New International Dictionary 745 (2d ed. 1954). To "discriminate against" a person, then, would seem to mean treating that individual worse than others who are similarly situated. [CITE]. In so-called "disparate treatment" cases like today's, this Court has also held that the difference in treatment based on sex must be intentional. See, e.g., [CITE]. So, taken together, an employer who intentionally treats a person worse because of sex—such as by firing the person for actions or attributes it would tolerate in an individual of another sex—discriminates against that person in violation of Title VII. Bostock v. Clayton County

1.1.3 PERIPHERAL EXAMPLES:

- The second hurdle is cleared more easily still, and the Court has shown how. Like some Courts of Appeals before it, the majority today finds great significance in the fact that the generally phrased exemption for the employment contracts of workers "engaged in commerce" does not stand alone, but occurs at the end of a sequence of more specific exemptions: for "contracts of employment of seamen, railroad employees, or any other class of workers engaged in foreign or interstate commerce." Like those other courts, this Court sees the sequence as an occasion to apply the interpretive maxim of ejusdem generis, that is, when specific terms are followed by a general one, the latter is meant to cover only examples of the same sort as the preceding specifics. Here, the same sort is thought to be contracts of transportation workers, or employees of transporters, the very carriers

of commerce. And that, of course, excludes respondent Adams from benefit of the exemption, for he is employed by a retail seller. Circuit City v. Adams

- Further, were we to adopt respondent's construction of the statute, we would render the word "State" insignificant, if not wholly superfluous. "It is our duty 'to give effect, if possible, to every clause and word of a statute.' " [CITE]; see also [CITE](describing this rule as a "cardinal principle of statutory construction"); [CITE] ("As early as in Bacon's Abridgment, sect. 2, it was said that 'a statute ought, upon the whole, to be so construed that, if it can be prevented, no clause, sentence, or word shall be superfluous, void, or insignificant' "). We are thus "reluctan[t] to treat statutory terms as surplusage" in any setting. [CITE]; see also [CITE]. We are especially unwilling to do so when the term occupies so pivotal a place in the statutory scheme as does the word "State" in the federal habeas statute. But under respondent's rendition of § 2244(d)(2), Congress' inclusion of the word "State" has no operative effect on the scope of the provision. If the phrase "State post-conviction or other collateral review" is construed to encompass both state and federal collateral review, then the word "State" places no constraint on the class of applications for review that toll the limitation period. The clause instead would have precisely the same content were it to read "post-conviction or other collateral review." Duncan v. Walker
- Nevertheless, respondent urges that the legislative purpose of the statute is best served by construing it to permit some choice in determining the length of the penalty period. In respondent's view, the purpose of the statute is essentially remedial and compensatory, and thus it should not be interpreted literally to produce a monetary award that is so far in excess of any equitable remedy as to be punitive. Griffin v. Oceanic Contractors.
- A point is made, that the legislature have not conferred, or intended to confer, authority upon the city to make this contract. We ueed only say that full power was not only conferred, but that the contract itself has been since ratified by this body.
  - Commentary: this paragraph features the categorical and mechanical reasoning characteristic of the formal school. However, this might be a "low confidence" example.
- For me, the breadth of these terms forecloses the majority's position that "prospectus" applies only in the context of initial distributions of securities. Indeed, §2(10)'s inclusion of a prospectus as only one of the many different documents that qualify as a "prospectus" for statutory purposes indicates that Congress intended "prospectus" to be more than a mere "term of art." Likewise, Congress' extension of prospectus to include documents that merely confirm the sale of a security underscores Congress' intent to depart from the term's ordinary meaning. Section 2(10)'s definition obviously concerns different types of communications rather than different types of transactions. Congress left the job of exempting certain classes of transactions to §§ 3 and 4, not to § 2(10). We should use § 2(10) to define "prospectus" for the 1933 Act, rather than, as the majority does, use the 1933 Act to define "prospectus" for § 2(10).
  - Commentary: this is a hard example, but note how the author regards the

meaning of the statute as existing in a closed universe.

- The USOC has held a trademark in the word "Olympic" since 1896, ante, at 533, and § 110(a)(3) of the Amateur Sports Act perpetuates the USOC's protection against infringement of its trademarks. To be more than statutory surplusage, then, § 110(a)(4) must provide something more than a normal trademark. Thus, the Court finds that § 110(a)(4) grants to the USOC a novel and expansive word-use authority. In my view, the Act, as interpreted by the Court, is substantially overbroad, violating the First Amendment because it prohibits "a substantial amount of constitutionally protected conduct." Hoffman Estates v. The Flipside, Hoffman Estates, Inc., 455 U. S. 489, 494 (1982). The Amateur Sports Act is substantially overbroad in two respects. First, it grants the USOC the remedies of a commercial trademark to regulate the use of the word "Olympic," but refuses to interpret the Act to incorporate the defenses to trademark infringement provided in the Lanham Act. These defenses are essential safeguards which prevent trademark power from infringing upon constitutionally protected speech. Second, the Court construes § 110(a)(4) to grant the USOC unconstitutional authority to prohibit use of "Olympic" in the "promotion of theatrical and athletic events," even if the promotional activities are noncommercial or expressive. Ante, at 535, 540-541.
  - Commentary: note the affirmative use of the surplusage canon. This is a hard passage to code, however, due to the language that follows the use of the surplusage canon; note that it renders that language in criticism of the majority.

1.2 Code: Grand

1.2.1 DESCRIPTION:

A legal decision that views law as an open-ended and on-going enterprise for the production and improvement of decisions that make sense on their face and in light of political, social, and economic factors.

1.2.2 CORE EXAMPLE:

Respondent's argument is not without force. But it overlooks the significance of the fact that the Kaiser-USWA plan is an affirmative action plan voluntarily adopted by private parties to eliminate traditional patterns of racial segregation. In this context respondent's reliance upon a literal construction of §§ 703 (a) and (d) and upon McDonald is misplaced. See [CITE]. It is a "familiar rule, that a thing may be within the letter of the statute and yet not within the statute, because not within its spirit, nor within the intention of its makers." [CITE]. The prohibition against racial discrimination in §§ 703 (a) and (d) of Title VII must therefore be read against the background of the legislative history of Title VII and the historical context from which the Act arose. See [CITE]. Examination of those sources makes clear that an interpretation of the sections that forbade all race-conscious affirmative action would "bring about an end completely at variance with the purpose of the statute" and must be rejected. [CITE]. See [CITE]. Steelworkers v. Weber

1.2.3 PERIPHERAL EXAMPLES:

- We are especially hesitant to conclude that Congress intended to grant the Commission other than the customary power to secure safety in view of the absence in the legislative history of the Act of any discussion of the desirability of giving the Commission broad and unusual powers over all employees. The clause in question was not contained in the bill as introduced. Nor was it in the Coordinator's draft. It was presented on the Senate floor as a committee amendment following a suggestion of the Chairman of the Legislative Committee of the Commission, Mr. McManamy. The committee reports and the debates contain no indication that a regulation of the qualifications and hours of service of all employees was contemplated; in fact the evidence points the other way. The Senate Committee's report explained the provisions of § 204 (a) (1), (2) as giving the commission authority over common and contract carriers similar to that given over private carriers by § 204 (a) (3). The Chairman of the Senate Committee expressed the same thought while explaining the provisions on the floor of the Senate. When suggesting the addition of the clause, the Chairman of the Commission's Legislative Committee said: ". . . it relates to safety." In the House the member in charge of the bill characterized the provisions as tending "greatly to promote careful operation for safety on the highways," and spoke with assurance of the Commission's ability to "formulate a set of reasonable rules . . . including therein maximum labor-hours service on the highway." And in the report of the House Committee a member set out separate views criticizing the delegation of discretion to the Commission and proposing an amendment providing for an eight-hour day for "any employee engaged in the operation of such motor vehicle." US v. American Trucking Association.
- The legislative history of the Act establishes that the purpose behind its passage was to ensure judicial enforcement of privately made agreements to arbitrate. We therefore reject the suggestion that the overriding goal of the Arbitration Act was to promote the expeditious resolution of claims. The Act, after all, does not mandate the arbitration of all claims, but merely the enforcement — upon the motion of one of the parties — of privately negotiated arbitration agreements. The House Report accompanying the Act makes clear that its purpose was to place an arbitration agreement "upon the same footing as other contracts, where it belongs," H. R. Rep. No. 96, 68th Cong., 1st Sess., 1 (1924), and to overrule the judiciary's longstanding refusal to enforce agreements to arbitrate. This is not to say that Congress was blind to the potential benefit of the legislation for expedited resolution of disputes. Far from it, the House Report expressly observed: "It is practically appropriate that the action should be taken at this time when there is so much agitation against the costliness and delays of litigation. These matters can be largely eliminated by agreements for arbitration, if arbitration agreements are made valid and enforceable." Id., at 2. Nonetheless, passage of the Act was motivated, first and foremost, by a congressional desire to enforce agreements into which parties had entered, and we must not overlook this principal objective when construing the statute, or allow the fortuitous impact of the Act on efficient dispute resolution to overshadow the underlying motivation. Indeed,

this conclusion is compelled by the Court's recent holding in [CITE] in which we affirmed an order requiring enforcement of an arbitration agreement, even though the arbitration would result in bifurcated proceedings. That misfortune, we noted, "occurs because the relevant federal law requires piecemeal resolution when necessary to give effect to an arbitration agreement," id., at 20. See also id., at 24-25 ("The Arbitration Act establishes that, as a matter of federal law, any doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration"). Dean Witter Reynolds v. Byrd.

- A frequently stated principle of statutory construction is that when legislation expressly provides a particular remedy or remedies, courts should not expand the coverage of the statute to subsume other remedies. "When a statute limits a thing to be done in a particular mode, it includes the negative of any other mode." [CITE]. This principle of statutory construction reflects an ancient maxim—expressio unius est exclusio alterius. Since the Act creates a public cause of action for the enforcement of its provisions and a private cause of action only under very limited circumstances, this maxim would clearly compel the conclusion that the remedies created in § 307 (a) are the exclusive means to enforce the duties and obligations imposed by the Act. But even the most basic general principles of statutory construction must yield to clear contrary evidence of legislative intent. [CITE]. Accordingly, we turn to the legislative history of § 307 (a). National RR Passenger Group v. National Association of RR Passengers.
- It is true that the attention of the Congress had been called to the need for action to secure the relief which the Commission subsequently granted in its rules. In February 1962, the American Trucking Associations, in the course of oral argument in Gordon's Transports, Inc. v. Strickland Transp. Co., 318 I. C. C. 395, sustained sub nom. Strickland Transportation Co. v. United States, 219 F. Supp. 618 (D. C. N. D. Tex. 1963), apparently urged that motor carriers be allowed to utilize TOFC open tariffs. On April 5, 1962, President Kennedy sent a transportation message to Congress calling for legislative action to "[a]ssure all carriers the right to ship vehicles or containers on the carriers of other branches of the transportation industry at the same rates available to noncarrier shippers . . ." so that the various carriers would be placed "in a position of equality with freight forwarders and other shippers in the use of the promising and fast-growing piggyback and related techniques." H. R. Doc. No. 384, 87th Cong., 2d Sess., p. 5 (1962). Secretary of Commerce Hodges transmitted to Congress proposed legislation to implement the President's message. Hearings on S. 3242 and S. 3243 before the Senate Committee on Commerce, 87th Cong., 2d Sess., pt. 1, p. 13 (1962). See also Hearings on S. 1061 and S. 1062 before Surface Transportation Subcommittee of the Senate Committee on Commerce, 88th Cong., 1st Sess., pt. 1, p. 3 (1963). Bills were introduced in 1962 and 1963. See S. 3242 and H. R. 11584, 87th Cong., 2d Sess. (1962); S. 1062 and H. R. 4701, 88th Cong., 1st Sess. (1963). On June 29, 1962, the Commission instituted the present proceeding. It advised Congress of its action and of its intention to "resolve" the matter or, if it could not, to recommend appropriate legislation. Surface Transportation Subcommittee Hearings, supra, pt. 2, p. 801; Hearings on H. R. 4700 and H. R. 4701 before the

House Committee on Interstate and Foreign Commerce, 88th Cong., 1st Sess., pt. 1, p. 32 (1963). Following this, requests came from the industry to Congress that it withhold legislative action pending the Commission's decision. See, e. g., Hearings on H. R. 4700 and H. R. 4701, supra, pt. 1, p. 213; pt. 2, p. 991. We do not regard this as legislative history demonstrating a congressional construction of the meaning of the statute, nor do we find in it evidence of an administrative interpretation of the Act which should tilt the scales against the correctness of the Commission's conclusions as to its authority to prescribe the present rules. The advocacy of legislation by an administrative agency — and even the assertion of the need for it to accomplish a desired result — is an unsure and unreliable, and not a highly desirable, guide to statutory construction. The possibility of its use to prove more than it means may, but should not, deter administrative agencies from seeking helpful clarification of authority or a fresh and specific congressional mandate.

  - Commentary: this is an example of "internecine" disputes within the Grand style about what forms of legislative history matter or matter most—but it is not a rejection of that style of reasoning or an endorsement of formalism.

- On the other hand, when punishment involves a cruel, severe beating or chopping off an ear, something more than merely the dignity of the individual is involved. Whenever a given criminal punishment is "cruel and unusual" because it is inhumane or barbaric, I can think of no reason why it would be any less inhumane or barbaric when inflicted on a schoolchild, as punishment for classroom misconduct.

  - Commentary: notice that the passage considers social and moral values in defining a term; this does not treat law as a mechanical or closed system, but rather as one that invites consideration of social context.

1.3 Code: None

1.3.1 Description:

A passage or mode of reasoning that does not reflect either the Grand or Formal approaches. Note that this coding would include areas of substantive law outside of statutory interpretation, including procedural matters.

1.3.2 CORE EXAMPLES:

- The questions are, What is the form of an assignment, and how must it be evidenced? There is no precise form. It may be. by delivery. Briggs v. Dorr, CITE, citing numerous cases; Onion v. Paul, 1 Har. & Johns. 114; Dunn v. Snell, CITE; Titcomb v. Thomas, 5 Greenl. 282. True, it is said it must be on a valuable consideration, with intent to transfer it. But these last are requisites in all assignments, or transfers of securities, negotiable or not. It may be by writing under seal, by writing without seal, by oral declarations, accompanied in all cases by delivery, and on a just consideration. The evidence may be by proof of handwriting and proof of. possession. It may be proved by proving the signature of the payee or obligee on the back, and possession by a third person. 3 Gill & Johns. 218.

- Commentary: notice that the reasoning focuses on the authority of precedent. In this case, we do not know if those precedents import a formalist or grand style of reasoning, and the paragraph would be coded as "none."

- In Massachusetts, for instance, the legislature charged a committee with drafting a report on election methods. The fourth article of the resulting report called for the State to be divided into eight districts that would each elect one representative, but did not require that the representatives be residents of the districts that elected them. Joint Committee Report (Nov. 4, 1788), in 1 First Federal Elections 481. When the members of the State House of Representatives discussed this report, those who proposed adding a district residency requirement were met with the claim that the Federal Constitution barred the legislature from specifying additional qualifications. See Massachusetts Centinel (Nov. 8, 1788) (reporting proceedings), in 1 First Federal Elections 489. After "considerable debate," the House approved the committee's version of the fourth article by a vote of 89 to 72. Ibid. But the State Senate approved a district residency amendment, 1 First Federal Elections 502, and the House then voted to retain it, id., at 504.

- Commentary: note that there is no reasoning evident in the passage.

- Ward Bannister: "[T]here is nothing in the Federal Constitution upon which to base the power of the Federal Government to divide this water among the States. . . . [T]he same thing that would invalidate a provision inserted by Congress direct would invalidate, any rule promulgated by the Secretary of the Interior under Congressional permission, and the upper States would find .themselves utterly helpless." Hearings, CITE n. 7, at 195.

- Commentary: note that the court is not interpreting a statute in this passage.

- That these agreements restrain trade is obvious. That, having been made, as the bill alleges, with "most of the jobbers and wholesale druggists and a majority of the retail druggists of the country " and having for their purpose the control of the entire trade, they relate directly to interstate as well as intrastate trade, and operate to restrain trade or commerce among the several States, is also clear. Addyston Pipe & Steel Co. v. United States, CITE; Bement v. National Harrow Co., 186 U. S. p. 92; Montague & Co. v. Lowry, CITE; Swift & Co. v. United States, CITE.

- Commentary: there is no interpretation in this paragraph.

2. Classification Results

Table 1. Model performance averaged over five train test splits. Macro averages represent averages unweighted by class.

	Macro			*Grand*			*Formal*			*None*		
Model	F1	P	R	F1	P	R	F1	P	R	F1	P	R
Nested												
BERT-base	0.67	0.67	0.68	0.65	0.62	0.68	0.49	0.50	0.48	0.87	0.88	0.86
LEGAL-BERT	0.69	0.68	0.71	0.67	0.64	0.71	0.54	0.51	0.57	0.88	0.90	0.85
DistilBERT	0.67	0.67	0.68	0.65	0.63	0.68	0.50	0.50	0.50	0.87	0.88	0.86
T5-base	0.67	0.67	0.68	0.66	0.59	0.75	0.47	0.52	0.43	0.87	0.90	0.85
T5-small	0.54	0.56	0.55	0.57	0.50	0.66	0.21	0.34	0.15	0.84	0.84	0.83
Multi-Class												
BERT-base	0.68	0.68	0.68	0.67	0.65	0.69	0.50	0.52	0.48	0.88	0.88	0.87
LEGAL-BERT	**0.70**	**0.70**	**0.71**	**0.68**	**0.65**	0.72	**0.55**	0.55	0.55	**0.88**	0.89	**0.87**
DistilBERT	0.67	0.67	0.66	0.66	0.64	0.68	0.47	0.51	0.44	0.87	0.86	0.87
T5-base	0.64	0.64	0.65	0.66	0.63	0.69	0.51	0.52	0.50	0.87	0.88	0.86
T5-small	0.48	0.62	0.49	0.57	0.66	0.51	0.02	0.43	0.01	0.84	0.76	0.94
In-Context, Descriptions												
GPT-4	0.22	0.24	0.27	0.44	0.38	0.51	0.36	0.23	0.81	0.58	0.92	0.42
FLAN-T5	0.19	0.36	0.36	0.36	0.24	0.77	0.16	0.11	0.28	0.04	0.72	0.02
Llama-2-Chat	0.20	0.34	0.36	0.35	0.22	0.92	0.00	0.00	0.00	0.24	0.82	0.14
In-Context, Examples												
GPT-4	0.45	0.47	0.54	0.45	0.38	0.57	0.36	0.25	0.65	0.62	0.86	0.48
FLAN-T5	0.08	0.28	0.23	0.15	0.28	0.10	0.20	0.12	0.90	0.01	0.82	0.01
Llama-2-Chat	0.10	0.31	0.50	0.35	0.21	**0.96**	0.04	0.23	0.02	0.01	0.8	0.00
Chain-of-Thought												
GPT-4	0.34	0.37	0.37	0.25	0.50	0.17	0.43	0.32	0.67	0.78	0.80	0.76
FLAN-T5	0.08	0.33	0.34	0.00	0.00	0.00	0.21	0.12	**1.00**	0.03	0.86	0.02
Llama-2-Chat	0.08	0.55	0.44	0.32	0.20	0.74	0.00	**1.00**	0.00	0.00	**1.00**	0.00